



**Symal Group – Shamrock Engineering and Equipment**

MN-50030

# **Phase 1 Determination**

**Acquisition may be put into effect**

22 July 2026

# 1. Determination and statement of reasons

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| <b>Notified acquisition</b>                         | Symal Group Limited ( <b>Symal Group</b> ) is proposing to acquire Shamrock Equipment Pty Ltd, Shamrock Civil Engineering Pty Ltd, Phoenix Investments Queensland Pty Ltd and certain assets including plant and equipment (together, <b>Shamrock Group</b> ) (the <b>Acquisition</b> ).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Determination</b>                                | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Parties to the Acquisition</b>                   | <p>The acquirer, Symal Group is a civil construction and engineering services provider across the roads, rail, defence, ports and energy sectors, providing demolition, bulk earthworks, site preparation, haulage and tip operations services. Symal Group operates businesses under the Symal, Sycle, Unyte, Searo and Wamarra brands.</p> <p>The target, Shamrock Group is a civil construction, equipment and engineering services provider across the roads, defence, resources, landfill, public infrastructure, and water and gas sectors, providing earthworks, demolition and decontamination services.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Overlap and relationship between the parties</b> | The parties overlap in the supply of construction and engineering services.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>Reasons for determination</b>                    | <p>When making a determination in Phase 1, the Australian Competition and Consumer Commission (<b>ACCC</b>) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.</p> <p>For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's <a href="#">merger assessment guidelines</a> and <a href="#">interim merger process guidelines</a>.</p> <p>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information.</p> <p>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.</p> <ul style="list-style-type: none"> <li>• The market share aggregation resulting from the Acquisition is not significant under either a broad market, including the supply of construction and engineering services, or under a narrower segment of specialised civil contracting such as defence civil contracting.</li> <li>• There was no information obtained during the public review which suggested the merger parties were particularly close competitors in respect of any narrow segment of construction</li> </ul> |

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|                                | <p>and engineering services, such that the Acquisition could cause competition concerns.</p> <ul style="list-style-type: none"><li>• Post Acquisition, the merged firm would continue to face competition from multiple alternative suppliers of construction and engineering services across different sectors.</li></ul>                                                                                                                                                                                                                                           |
| <b>Applications for review</b> | <p>A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.</p> |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**